



File No.: EXP202315730

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On September 22, 2021, a complaint was filed with entry registration number 000007128e2100039374 before the Spanish Agency for Data Protection against the MINISTRY OF TERRITORIAL POLICY with NIF S2833002E (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that on ***DATE.1, without prior administrative notification at their address, nor any communication in the official bulletins, they became aware through the media <> that the government sub-delegation of Seville opened a file against them, considering them the promoter of the concentration of the political party Vox in Seville for not communicating it in a timely manner.

The complainant adds that they are ***POSITION.1 of Vox in ***LOCALITY.1 and ***POSITION.2 in the Provincial Council.

The complainant believes that the complained entity unlawfully disseminated their personal data, causing them serious harm to their public image, and provides the publication disseminated by Europa Press and by the Diario de Sevilla.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on October 5, 2021, as evidenced by the acknowledgment of receipt in the file.

On April 20, 2022, a response was received in this Agency indicating:

"That on ***DATE.1, a report was received from the Provincial Police Station of Seville, which states the following regarding the press conference called by the political party VOX on ***DATE.2 at ***ADDRESS.1: 'At 11:30 a.m. by the UIP, on the occasion of the press conference and in order to avoid confrontations and/or assaults on the conveners by individuals not aligned with VOX, a police closure device was established (...), consisting of the establishment of control filters at each and every access (...), through which only accredited press and the conveners participating in the event were allowed to pass.

No crowds occurred at these filters, except at the one located at the entrance to (...), where about one hundred people gathered, all of whom were wearing masks. At 1:00 p.m., the press conference began (...), with an attendance of about 100 people, including journalists, organization members, and supporters of Vox.' It is indicated in this report that 'the UIP officials proceeded to identify (...) Mr. A.A.A.

Regarding the facts presented in the aforementioned report, on ***DATE.3, at 11:40 a.m., an email was received from voxsevilla.org addressed to the generic email address of the Subdelegation of the Government in Seville of the meeting law department, stating that 'pursuant to Article 8 of Organic Law 9/83 of July 15 regulating the right of assembly, we, the political party VOX, hereby communicate that tomorrow, ***DATE.2 at 12:00 a.m., a press conference is scheduled at ***ADDRESS.1. As it cannot be confirmed, we are making this communication to warn of the possibility that the number of attendees may exceed 20 people, which is why we are issuing this communication attached to this email.'

By the meeting law department, this communication was not processed in accordance with the provisions of Organic Law 9/1983, since the activity communicated consisted of a press conference occupying public thoroughfare, being an informative event called by an organization or entity to which the media are invited to report on what happens or is said there, and therefore not an activity that

required any permission from the Subdelegation of the Government.

However, since the request indicated the intention to occupy a public thoroughfare, the communication was forwarded, for informational purposes, to both the City Council of Seville and the National Police.

At 7:38 p.m. on ***DATE.3, a message was disseminated on Facebook, Twitter, and other social networks with a poster announcing a press statement by B.B.B. at ***ADDRESS.1.

A press conference was also disseminated to the media, 'Press conference on ***DATE.2 at 1:00 p.m., at ***ADDRESS.1, by ***POSITION.6 of VOX, B.B.B.' In fact, on ***DATE.2, as evidenced by the report issued by the Provincial Police Station and related news, the press conference called at ***ADDRESS.1 by the political group VOX turned into an uncommunicated demonstration/concentration in accordance with the provisions of Organic Law 9/1983, with a significant presence of VOX supporters interested in the presence of ***POSITION.6 of that political party.

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This concentration was not communicated to the Government Subdelegation in Seville with a minimum notice period of 10 days, as established by the aforementioned Organic Law, and in the application submitted with 25 hours' notice prior to the scheduled event, the urgency was not justified in any case, and the necessary personal distance to prevent contagions was not guaranteed, in accordance with Article 7.3 of Royal Decree 926/2020, of October 25, which declared the state of alarm to contain the spread of infections caused by SARS-CoV-2.

According to information published after the event by media outlets such as "El Diario de Sevilla," "ABC Andalucía," "El País," and "El Diario," as well as on social media, a gathering of numerous people could be observed around B.B.B. at ***ADDRESS.1, on ***DATE.2, disregarding compliance with the mandatory safety measures due to the health situation caused by the COVID-19 virus, including not maintaining the minimum interpersonal safety distance.

In the days following the event, the political party VOX, the organizing political party, announced through the media the filing of complaints against ***POSITION.3 and the then ***POSITION.4, C.C.C., and ***POSITION.5, D.D.D., as can be verified in the attached press releases.

Additionally, there are press releases indicating that both the Government Delegation in Andalusia and the Government Subdelegation in Seville, as well as the City Council, highlighted that the event held had not been processed in accordance with legal channels.

In response to multiple phone calls from media outlets questioning the actions of this political group and the announced complaints, to avoid generating social alarm, a press release was issued by the Government Subdelegation in Seville, which ultimately reminded of the existing legal procedure and informed that since the promoter of the uncommunicated concentration had identified himself as Mr. A.A.A., the corresponding sanctioning file would be initiated.

It should be noted that at the time of the celebration of the uncommunicated concentration, and as stated in the ruling of the Court of Instruction No. XX of Seville, dated October 29, 2021, which archived the announced complaint by VOX, "the reported events occur in a context of the validity of the state of alarm, with restrictions on fundamental rights, agreed upon by the national government due to the COVID-19 pandemic according to RD 463/20 and subsequent regulations that develop it, as well as by RD 926/20 of October 25 regarding health to prevent the spread of the SARS-CoV-2 virus."

The ruling concludes that "It cannot be said that the right to assembly of any person was violated, since the complainant party did not convene a concentration, meeting, or demonstration that could be freely attended, as its practice was not requested with the formalities required by administrative regulations and its communication at least 10 days in advance, nor was urgency indicated, but rather what was requested was...

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permission for a press conference with possible occupation of the roadway, being therefore the convener aware that there could be some incident or disturbance of the order.”

The initiation of the sanctioning file against Mr. A.A.A. as the promoter of the act did not occur until 26/05/2022, following the order of initiation of files, given the existing workload in the sanctions department.

The initiation agreement was published in the Single Edict Board on (date...), due to the impossibility of notifying said agreement at the interested party's address, stating in it the mandatory warning that if the interested party did not appear within 10 calendar days at the electronic headquarters and/or at the offices of the Sanctions Office of the Government Subdelegation in Seville, the notification would be understood as produced for all effects.

On September 24, 2021, Mr. A.A.A. contacted the Sanctions Unit of the Government Subdelegation in Seville, requesting information about his sanctioning file and also requesting a copy of the notification announcement of the initiation agreement published in the Single Edict Board, which was sent to him on September 27, 2021.

As previously stated, on October 6, 2021, Mr. A.A.A. submitted allegations, expressing his disagreement with the facts presented in the Initiation Agreement. On January 11, 2022, a Proposal for Resolution was issued, which was notified to the interested party on January 25, 2022.

On February 15, 2022, a new document from the interested party with his allegations was received at this Subdelegation, and on March 24, 2022, a Resolution was issued by the Government Subdelegate imposing a sanction on the interested party.

From what is stated in point 3, this Government Subdelegation considers that it is not necessary to implement measures, given that the interested party's data was communicated in a context of health alert that motivated the responsible public authority to react by expressing the will to sanction the holding of events convened without compliance with regulations and, above all, without the health measures provided to address Sars-Covid2. The interested party identified himself to the National Police without any coercion as the promoter of the event held and is recorded as such in the report issued by that Body, with his data not appearing in any data file, therefore it is considered that in no case has there been a violation of the regulations on the protection and processing of personal data.

THIRD: In accordance with Article 65 of the LOPDGDD, when a complaint is presented to the Spanish Agency for Data Protection, it must evaluate its admissibility for processing, notifying the complainant of the decision on the admission or inadmissibility for processing within three months from the date the complaint was received by this Agency. If, after this period, such notification does not occur, it will be understood that the processing of the complaint continues in accordance with the provisions of Title VIII of the Law.

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This provision also applies to the procedures that the AEPD must process in the exercise of the powers attributed to it by other laws.

In this case, taking into account the above and that the complaint was presented to this Agency on September 22, 2021, it is communicated that your complaint has been admitted for processing, dated December 22, 2021, having passed three months since it was received by the AEPD.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve, in accordance with the provisions of section 2 of Article 56 in relation to section 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural

persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

In accordance with the provisions of Article 23.2.b) of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, as the assumption provided for in that provision applies in this case, the Director of the Spanish Agency for Data Protection has agreed to refrain from intervening in the actions that, within her competence, she is to develop as Director of the Agency in this procedure.

According to the provisions of Article 48.2 of the LOPDGDD, in cases of absence, vacancy, or illness of the person holding the Presidency or when any of the reasons for abstention or recusal provided for in Article 23 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, apply to her, the exercise of the powers related to the procedures regulated by Title VIII of this organic law will be assumed by the person holding the management body that performs inspection functions.

II

Security of processing

Article 32 of the GDPR stipulates the following:

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"1. Taking into account the state of the art, the costs of application, and the nature, scope, context, and purposes of the processing, as well as the varying probability and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law."

III

Principles relating to processing

Letter f) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

- f) processed in a manner that ensures appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

IV

Statements of the Respondent

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In this case, the complainant states that on ***DATE.1, without prior administrative notification at their address, nor any communication in the official bulletins, they became aware through the media <> that the subdelegation of the government of Seville had opened a file against them, considering them the promoter of the concentration of the political party Vox in Seville for not communicating it in a timely manner.

In response to the actions of transfer and information carried out, this Agency has received a letter from the respondent in which, for the purposes here, it states that officials from the UIP identified the complainant as the organizer, and in the days following the event held, the political party VOX, the organizing political party, announced through the media the filing of complaints.

Additionally, there are press releases in which both the Delegation of the Government in Andalusia and the Subdelegation of the Government in Seville and the City Council indicate that the event held had not been processed according to legal channels.

In light of the multiple phone calls from media outlets questioning the actions of this political group and the announced complaints, to avoid the social alarm generated, a press release was issued by the subdelegation of the government in Seville, which ultimately reminded of the existing legal procedure and informed that since the promoter of the uncommunicated concentration had been identified as Mr. A.A.A., the corresponding sanctioning file would be instructed.

V

Conclusion

In this case, once the reasons presented by the respondent, which are in the file, have been analyzed, it has been confirmed that there are no reasonable indications of the existence of an infringement within the competence of the Spanish Agency for Data Protection, and consequently, the opening of a sanctioning procedure is not warranted.

It must be taken into account that, in Administrative Sanctioning Law, due to its specialty, the guiding principles of criminal law apply with some nuances, but without exceptions, resulting in the clear full validity of the principle of presumption of innocence.

In this regard, the Constitutional Court, in Judgment 76/1990, considers that the right to the presumption of innocence entails "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, with no one being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal." This principle is expressly enshrined for

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the sanctioning administrative procedures in Article 53.2.b) of Law 39/2015, of October 1, on Common Administrative Procedure of Public Administrations, which recognizes the interested party's right "To the presumption of non-existence of administrative responsibility until proven otherwise."

In short, the application of the principle of presumption of innocence prevents attributing an administrative infraction when no evidence or indications have been obtained that derive from the existence of an infraction.

In this case, from the actions taken and the documentation in the file, there is no inference of an infringing action by the party being claimed against within the jurisdiction of the AEPD, therefore, the claim should be archived.

In view of the cited provisions and others of general application, the Deputy Director General of Data Inspection of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE the claim.

SECOND: TO NOTIFY this Resolution to the claiming party and the party being claimed against.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Director of the Spanish Agency for Data Protection

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Olga Pérez Sanjuán

(P.S. Deputy Director General of Data Inspection)

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